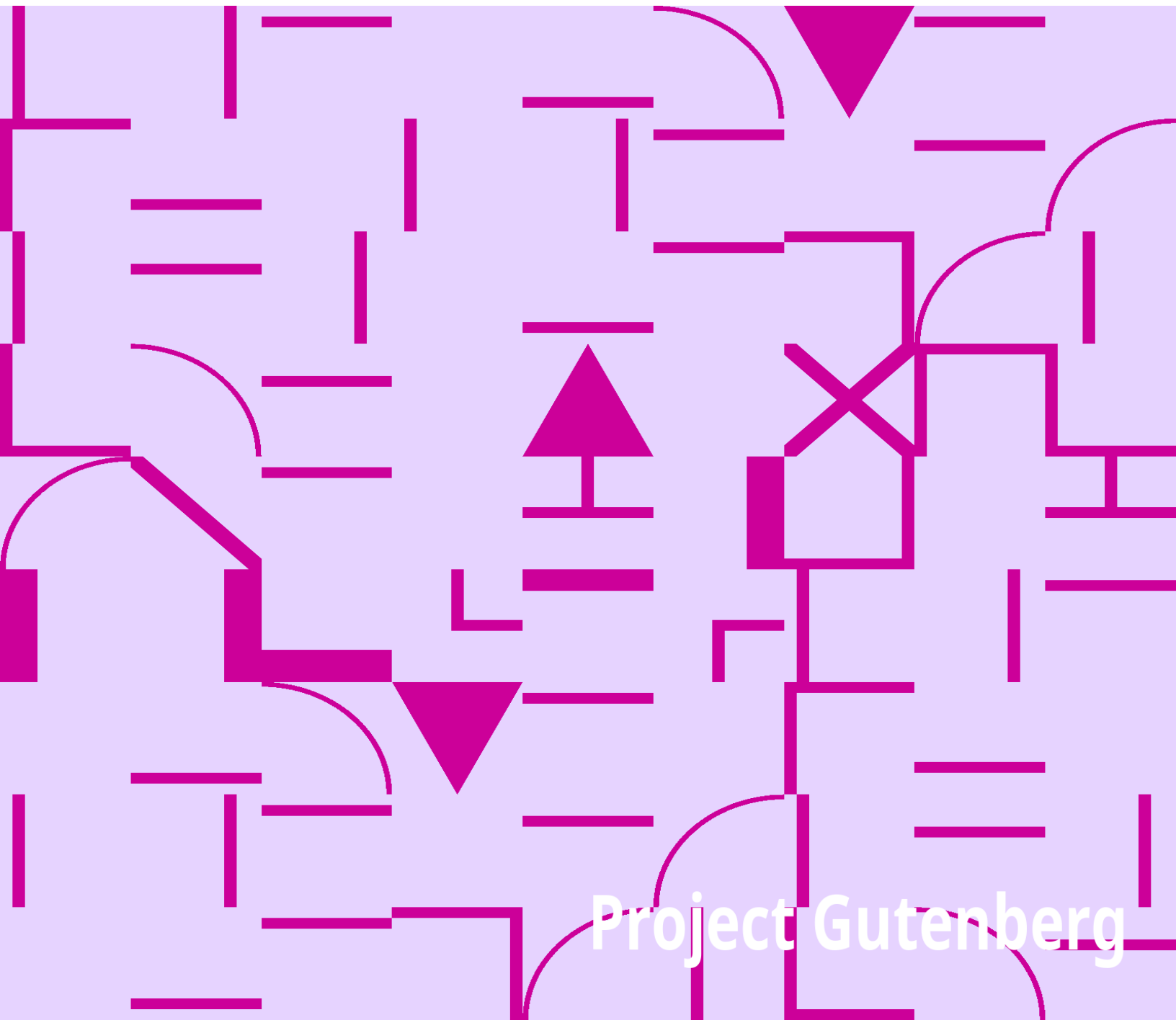


The Rise of the Dutch Republic — Volume 16: 1569-70

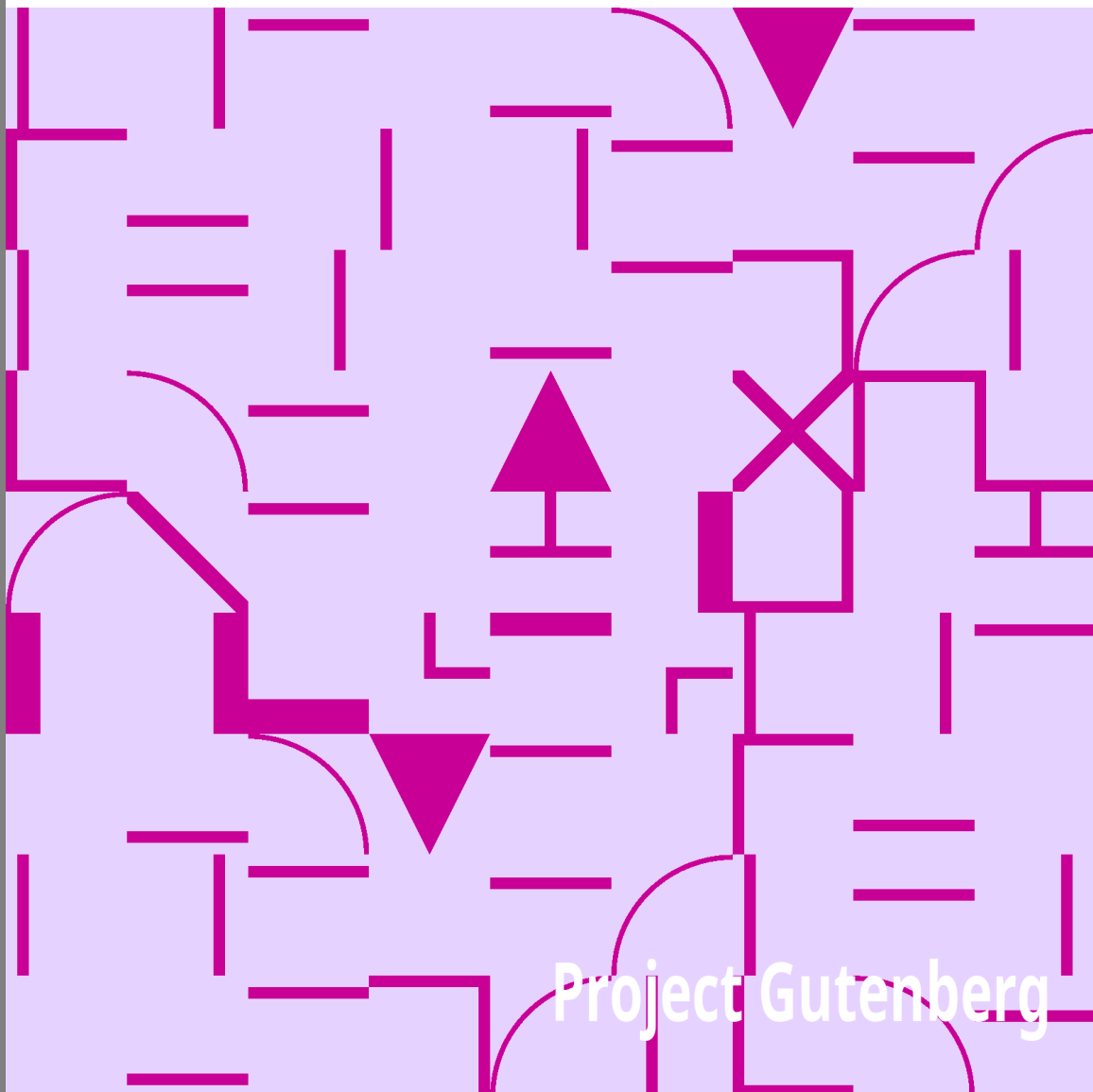
John Lothrop Motley



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MOTLEY'S HISTORY OF THE NETHERLANDS, PG EDITION, VOLUME 17.

THE RISE OF THE DUTCH REPUBLIC

By John Lothrop Motley

1855

1569-70 [CHAPTER V.]

Quarrel between Alva and Queen Elizabeth of England—Spanish funds seized by the English government—Non-intercourse between England and the Netherlands—Stringent measures against heresy—Continued persecution—Individual cases—Present of hat and sword to Alva from the Pope—Determination of the Governor—general to establish a system of arbitrary taxation

in the provinces—Assembly of estates at Brussels—Alva's decrees laid before them—The hundredth, tenth, and fifth pence—Opposition of Viglius to the project—Estates of various provinces give a reluctant consent—Determined resistance of Utrecht—The city and province cited before the Blood Council— Sentence of confiscation and disfranchisement against both—Appeal to the King—Difficulty of collecting the new tax—Commutation for two years—Projects for a pardon-general—Growing disfavour of the Duke—His desire to resign his post—Secret hostility between the Governor and Viglius—Altered sentiments of the President—Opinions expressed by Granvelle—The pardon pompously proclaimed by the Duke at Antwerp—Character of the amnesty—Dissatisfaction of the people with the act—Complaints of Alva to the King—Fortunes and fate of Baron Montigny in Spain—His confinement at Segovia—His attempt to escape—Its failure—His mock trial—His wife's appeal to Philip— His condemnation—His secret assassination determined upon—Its details, as carefully prescribed and superintended by the King— Terrible inundation throughout the Netherlands—Immense destruction of life and property in Friesland—Lowestein Castle taken by De Ruyter, by stratagem—Recapture of the place by the Spaniards— Desperate resistance and death of De Ruyter.

It was very soon after the Duke's return to Brussels that a quarrel between himself and the Queen of England took place. It happened thus. Certain vessels, bearing roving commissions from the Prince of Conde, had chased into the ports of England some merchantmen coming from Spain with supplies in specie for the Spanish army in the Netherlands. The trading ships remained in harbor, not daring to leave for their destination, while the privateers remained in a neighbouring port ready to pounce upon them should they put to sea. The commanders of the merchant fleet complained

to the Spanish ambassador in London. The envoy laid the case before the Queen. The Queen promised redress, and, almost as soon as the promise had been made, seized upon all the specie in the vessels, amounting to about eight hundred thousand dollars—[1885 exchange rate]— and appropriated the whole to her own benefit. The pretext for this proceeding was twofold. In the first place, she assured the ambassador that she had taken the money into her possession in order that it might be kept safe for her royal brother of Spain. In the second place, she affirmed that the money did not belong to the Spanish government at all, but that it was the property of certain Genoese merchants, from whom, as she had a right to do, she had borrowed it for a short period. Both these positions could hardly be correct, but either furnished an excellent reason for appropriating the funds to her own use.

The Duke of Alva being very much in want of money, was furious when informed of the circumstance. He immediately despatched Councillor d'Assonleville with other commissioners on a special embassy to the Queen of England. His envoys were refused an audience, and the Duke was taxed with presumption in venturing, as if he had been a sovereign, to send a legation to a crowned head. No satisfaction was given to Alva, but a secret commissioner was despatched to Spain to discuss the subject there. The wrath of Alva was not appeased by this contemptuous treatment. Chagrined at the loss of his funds, and stung to the quick by a rebuke which his arrogance had merited, he resorted to a high-handed measure. He issued a proclamation commanding the personal arrest of every Englishman within the territory of the Netherlands, and the seizure of every article of property which could be found belonging to individuals of that nation. The Queen retaliated by measures of the same severity against Netherlanders in England. The Duke followed up his blow by a proclamation (of March 31st, 1569), in which the grievance was detailed, and strict non-intercourse with England enjoined. While the Queen and the Viceroy were thus exchanging

blows, the real sufferers were, of course, the unfortunate Netherlands. Between the upper and nether millstones of Elizabeth's rapacity and Alva's arrogance, the poor remains of Flemish prosperity were well nigh crushed out of existence. Proclamations and commissions followed hard upon each other, but it was not till April 1573, that the matter was definitely arranged. Before that day arrived, the commerce of the Netherlands had suffered, at the lowest computation, a dead loss of two million florins, not a stiver of which was ever reimbursed to the sufferers by the Spanish government.

Meantime, neither in the complacency of his triumph over William of Orange, nor in the torrent of his wrath against the English Queen, did the Duke for a moment lose sight of the chief end of his existence in the Netherlands. The gibbet and the stake were loaded with their daily victims. The records of the period are foul with the perpetually renewed barbarities exercised against the new religion. To the magistrates of the different cities were issued fresh instructions, by which all municipal officers were to be guided in the discharge of their great duty. They were especially enjoined by the Duke to take heed that Catholic midwives, and none other, should be provided for every parish, duly sworn to give notice within twenty-four hours of every birth which occurred, in order that the curate might instantly proceed to baptism. They were also ordered to appoint certain spies who should keep watch at every administration of the sacraments, whether public or private, whether at the altar or at death-beds, and who should report for exemplary punishment (that is to say, death by fire) all persons who made derisive or irreverential gestures, or who did not pay suitable honor to the said Sacraments. Furthermore, in order that not even death itself should cheat the tyrant of his prey, the same spies were to keep watch at the couch of the dying, and to give immediate notice to government of all persons who should dare to depart this life without previously receiving extreme unction and the holy wafer. The estates of such culprits, it was

ordained, should be confiscated, and their bodies dragged to the public place of execution.

An affecting case occurred in the north of Holland, early in this year, which, for its peculiarity, deserves brief mention. A poor Anabaptist, guilty of no crime but his fellowship with a persecuted sect, had been condemned to death. He had made his escape, closely pursued by an officer of justice, across a frozen lake. It was late in the winter, and the ice had become unsound. It trembled and cracked beneath his footsteps, but he reached the shore in safety. The officer was not so fortunate. The ice gave way beneath him, and he sank into the lake, uttering a cry for succor. There were none to hear him, except the fugitive whom he had been hunting. Dirk Willemzoon, for so was the Anabaptist called, instinctively obeying the dictates of a generous nature, returned, crossed the quaking and dangerous ice, at the peril of his life, extended his hand to his enemy, and saved him from certain death. Unfortunately for human nature, it cannot be added that the generosity, of, the action was met by a corresponding heroism. The officer was desirous, it is true, of avoiding the responsibility of sacrificing the preserver of his life, but the burgomaster of Asperen sternly reminded him to remember his oath. He accordingly arrested the fugitive, who, on the 16th of May following, was burned to death under the most lingering tortures.

Almost at the same time four clergymen, the eldest seventy years of age, were executed at the Hague, after an imprisonment of three years. All were of blameless lives, having committed no crime save that of having favored the Reformation. As they were men of some local eminence, it was determined that they should be executed with solemnity. They were condemned to the flames, and as they were of the ecclesiastical profession, it was necessary before execution that their personal sanctity should be removed. Accordingly, on the 27th May, attired in the gorgeous robes of

high mass, they were brought before the Bishop of Bois le Duc. The prelate; with a pair of scissors, cut a lock of hair from each of their heads. He then scraped their crowns and the tips of their fingers with a little silver knife very gently, and without inflicting the least injury. The mystic oil of consecration was thus supposed to be sufficiently removed. The prelate then proceeded to disrobe the victims, saying to each one as he did so, "*Eximo tibi vestem justitiae, quem volens abjecisti;*" to which the oldest pastor, Arent Dirkzoon, stoutly replied, "*imo vestem injustitiae.*" The bishop having thus completed the solemn farce of desecration, delivered the prisoners to the Blood Council, begging that they might be handled very gently. Three days afterwards they were all executed at the stake, having, however, received the indulgence of being strangled before being thrown into the flames.

It was precisely at this moment, while the agents of the Duke's government were thus zealously enforcing his decrees, that a special messenger arrived from the Pope, bringing as a present to Alva a jewelled hat and sword. It was a gift rarely conferred by the Church, and never save upon the highest dignitaries, or upon those who had merited her most signal rewards by the most shining exploits in her defence. The Duke was requested, in the autograph letter from his Holiness which accompanied the presents, "to remember, when he put the hat upon his head, that he was guarded with it as with a helmet of righteousness, and with the shield of God's help, indicating the heavenly crown which was ready for all princes who support the Holy Church and the Roman Catholic faith." The motto on the sword ran as follows, "*Accipe sanctum gladium, menus a Deo in quo deicies adversarios populi mei Israel.*"

The Viceroy of Philip, thus stimulated to persevere in his master's precepts by the Vicegerent of Christ, was not likely to swerve from his path, nor to flinch from his work. It was beyond the power of man's ingenuity to

add any fresh features of horror to the religious persecution under which the provinces were groaning, but a new attack could be made upon the poor remains of their wealth.

The Duke had been dissatisfied with the results of his financial arrangements. The confiscation of banished and murdered heretics had not proved the inexhaustible mine he had boasted. The stream of gold which was to flow perennially into the Spanish coffers, soon ceased to flow at all. This was inevitable. Confiscations must, of necessity, offer but a precarious supply to any treasury. It was only the frenzy of an Alva which could imagine it possible to derive a permanent revenue from such a source. It was, however, not to be expected that this man, whose tyranny amounted to insanity, could comprehend the intimate connection between the interests of a people and those of its rulers, and he was determined to exhibit; by still more fierce and ludicrous experiments, how easily a great soldier may become a very paltry financier.

He had already informed his royal master that, after a very short time, remittances would no longer be necessary from Spain to support the expenses of the array and government in the Netherlands. He promised, on the contrary, that at least two millions yearly should be furnished by the provinces, over and above the cost of their administration, to enrich the treasury at home. Another Peru had already been discovered by his ingenuity, and one which was not dependent for its golden fertility on the continuance of that heresy which it was his mission to extirpate. His boast had been much ridiculed in Madrid, where he had more enemies than friends, and he was consequently the more eager to convert it into reality. Nettled by the laughter with which all his schemes of political economy had been received at home, he was determined to show that his creative statesmanship was no less worthy of homage than his indisputable genius for destruction.

His scheme was nothing more than the substitution of an arbitrary system of taxation by the Crown, for the legal and constitutional right of the provinces to tax themselves. It was not a very original thought, but it was certainly a bold one. For although a country so prostrate might suffer the imposition of any fresh amount of tyranny, yet it was doubtful whether she had sufficient strength remaining to bear the weight after it had been imposed. It was certain, moreover, that the new system would create a more general outcry than any which had been elicited even by the religious persecution. There were many inhabitants who were earnest and sincere Catholics, and who therefore considered themselves safe from the hangman's hands, while there were none who could hope to escape the gripe of the new tax-gatherers. Yet the Governor was not the man to be daunted by the probable unpopularity of the measure. Courage he possessed in more than mortal proportion. He seemed to have set himself to the task of ascertaining the exact capacity of the country for wretchedness. He was resolved accurately to gauge its width and its depth; to know how much of physical and moral misery might be accumulated within its limits, before it should be full to overflowing. Every man, woman, and child in the country had been solemnly condemned to death; and arbitrary executions, in pursuance of that sentence, had been daily taking place. Millions of property had been confiscated; while the most fortunate and industrious, as well as the bravest of the Netherlanders, were wandering penniless in distant lands. Still the blows, however recklessly distributed, had not struck every head. The inhabitants had been decimated, not annihilated, and the productive energy of the country, which for centuries had possessed so much vitality, was even yet not totally extinct. In the wreck of their social happiness, in the utter overthrow of their political freedom, they had still preserved the shadow, at least, of one great bulwark against despotism. The king could impose no tax.

The "Joyeuse Entree" of Brabant, as well as the constitutions of Flanders, Holland, Utrecht, and all the other provinces, expressly prescribed the manner in which the requisite funds for government should be raised. The sovereign or his stadholder was to appear before the estates in person, and make his request for money. It was for the estates, after consultation with their constituents, to decide whether or not this petition (Bede) should be granted, and should a single branch decline compliance, the monarch was to wait with patience for a more favorable moment. Such had been the regular practice in the Netherlands, nor had the reigning houses often had occasion to accuse the estates of parsimony. It was, however, not wonderful that the Duke of Alva should be impatient at the continued existence of this provincial privilege. A country of condemned criminals, a nation whose universal neck might at any moment be laid upon the block without ceremony, seemed hardly fit to hold the purse-strings, and to dispense alms to its monarch. The Viceroy was impatient at this arrogant vestige of constitutional liberty. Moreover, although he had taken from the Netherlands nearly all the attributes of freemen, he was unwilling that they should enjoy the principal privilege of slaves, that of being fed and guarded at their master's expense. He had therefore summoned a general assembly of the provincial estates in Brussels, and on the 20th of March, 1569, had caused the following decrees to be laid before them.

A tax of the hundredth penny, or one per cent., was laid upon all property, real and personal, to be collected instantly. This impost, however, was not perpetual, but only to be paid once, unless, of course, it should suit the same arbitrary power by which it was assessed to require it a second time.

A tax of the twentieth penny; or five per cent., was laid upon every transfer of real estate. This imposition was perpetual.

Thirdly, a tag of the tenth penny, or ten per cent., was assessed upon every article of merchandise or personal-property, to be paid as often as it should be sold. This tax was likewise to be perpetual.

The consternation in the assembly when these enormous propositions were heard, can be easily imagined. People may differ about religious dogmas. In the most bigoted persecutions there will always be many who, from conscientious although misguided motives, heartily espouse the cause of the bigot. Moreover, although resistance to tyranny in matters of faith, is always the most ardent of struggles, and is supported by the most sublime principle in our nature, yet all men are not of the sterner stuff of which martyrs are fashioned. In questions relating to the world above; many may be seduced from their convictions by interest, or forced into apostasy by violence. Human nature is often malleable or fusible, where religious interests are concerned, but in affairs material and financial opposition to tyranny is apt to be unanimous.

The interests of commerce and manufacture, when brought into conflict with those of religion, had often proved victorious in the Netherlands. This new measure, however—this arbitrary and most prodigious system of taxation, struck home to every fireside. No individual, however adroit or time-serving, could parry the blow by which all were crushed.

It was most unanswerably maintained in the assembly, that this tenth and twentieth penny would utterly destroy the trade and the manufactures of the country. The hundredth penny, or the one per cent. assessment on all property throughout the land, although a severe subsidy, might be borne with for once. To pay, however, a twentieth part of the full value of a house to the government as often as the house was sold, was a most intolerable imposition. A house might be sold twenty times in a year, and in the course, therefore, of the year be confiscated in its whole value. It amounted either

to a prohibition of all transfers of real estate, or to an eventual surrender of its price.

As to the tenth penny upon articles of merchandise, to be paid by the vendor at every sale, the scheme was monstrous. All trade and manufactures must, of necessity, expire, at the very first attempt to put it in execution. The same article might be sold ten times in a week, and might therefore pay one hundred per cent. weekly. An article, moreover, was frequently compounded of ten, different articles, each of which might pay one hundred per cent., and therefore the manufactured article, if ten times transferred, one thousand per cent. weekly. Quick transfers and unfettered movements being the nerves and muscles of commerce, it was impossible for it long to survive the paralysis of such a tax. The impost could never be collected, and would only produce an entire prostration of industry. It could by no possibility enrich the government.

The King could not derive wealth from the ruin of his subjects; yet to establish such a system was the stern and absurd determination of the Governor-general. The infantine simplicity of the effort seemed incredible. The ignorance was as sublime as the tyranny. The most lucid arguments and the most earnest remonstrances were all in vain. Too opaque to be illumined by a flood of light, too hard to be melted by a nation's tears, the Viceroy held calmly to his purpose. To the keen and vivid representations of Viglius, who repeatedly exhibited all that was oppressive and all that was impossible in the tax, he answered simply that it was nothing more nor less than the Spanish "alcabala," and that he derived 50,000 ducats yearly from its imposition in his own city of Alva.

Viglius was upon this occasion in opposition to the Duke. It is but justice to state that the learned jurisconsult manfully and repeatedly confronted the wrath of his superior in many a furious discussion in council upon the

subject. He had never essayed to snatch one brand from the burning out of the vast holocaust of religious persecution, but he was roused at last by the threatened destruction of all the material interests of the land. He confronted the tyrant with courage, sustained perhaps by the knowledge that the proposed plan was not the King's, but the Governor's. He knew that it was openly ridiculed in Madrid, and that Philip, although he would probably never denounce it in terms, was certainly not eager for its execution. The President enlarged upon the difference which existed between the condition of a sparsely-peopled country of herdsmen and laborers in Spain, and the densely-thronged and bustling cities of the Netherlands. If the Duke collected 50,000 ducats yearly from the alcabala in Alva, he could only offer him his congratulations, but could not help assuring him that the tax would prove an impossibility in the provinces. To his argument, that the impost would fall with severity not upon the highest nor the lowest classes of society, neither upon the great nobility and clergy nor on the rustic population, but on the merchants and manufacturers, it was answered by the President that it was not desirable to rob Saint Peter's altar in order to build one to Saint Paul. It might have been simpler to suggest that the consumer would pay the tax, supposing it were ever paid at all, but the axiom was not so familiar three centuries ago as now.

Meantime, the report of the deputies to the assembly on their return to their constituents had created the most intense excitement and alarm. Petition after petition, report after report, poured in upon the government. There was a cry of despair, and almost of defiance, which had not been elicited by former agonies. To induce, however, a more favorable disposition on the part of the Duke, the hundredth penny, once for all, was conceded by the estates. The tenth and twentieth occasioned—severe and protracted struggles, until the various assemblies of the patrimonial provinces, one after another, exhausted, frightened, and hoping that no serious effort would be made to collect the tax, consented, under certain

restrictions, to its imposition.—The principal conditions were a protest against the legality of the proceeding, and the provision that the consent of no province should be valid until that of all had been obtained. Holland, too, was induced to give in its adhesion, although the city of Amsterdam long withheld its consent; but the city and province of Utrecht were inexorable. They offered a handsome sum in commutation, increasing the sum first proposed from 70,000 to 200,000 florins, but they resolutely refused to be saddled with this permanent tax. Their stout resistance was destined to cost them dear. In the course of a few months Alva, finding them still resolute in their refusal, quartered the regiment of Lombardy upon them, and employed other coercive measures to bring them to reason. The rude, insolent, unpaid and therefore insubordinate soldiery were billeted in every house in the city, so that the insults which the population were made to suffer by the intrusion of these ruffians at their firesides would soon, it was thought, compel the assent of the province to the tax. It was not so, however. The city and the province remained staunch in their opposition. Accordingly, at the close of the year (15th. December, 1569) the estates were summoned to appear within fourteen days before the Blood Council. At the appointed time the procureur-general was ready with an act of accusation, accompanied, as was usually the case, with a simultaneous sentence of condemnation. The indictment revived and recapitulated all previous offences committed in the city and the province, particularly during the troubles of 1566, and at the epoch of the treaty with Duchess Margaret. The inhabitants and the magistrates, both in their individual and public capacities, were condemned for heresy, rebellion, and misprision. The city and province were accordingly pronounced guilty of high treason, were deprived of all their charters, laws, privileges, freedoms, and customs, and were declared to have forfeited all their property, real and personal, together with all tolls, rents, excises, and imposts, the whole being confiscated to the benefit of his Majesty.

The immediate execution of the sentence was, however, suspended, to allow the estates opportunity to reply. An enormous mass of pleadings, replies, replications, rejoinders, and apostilles was the result, which few eyes were destined to read, and least of all those to whom they were nominally addressed. They were of benefit to none save in the shape of fees which they engendered to the gentlemen of the robe. It was six months, however, before the case was closed. As there was no blood to be shed, a summary process was not considered necessary. At last, on the 14th July, the voluminous pile of documents was placed before Vargas. It was the first time he had laid eyes upon them, and they were, moreover, written in a language of which he did not understand a word. Such, however, was his capacity for affairs, that a glance only at the outside of the case enabled him to form his decision. Within half an hour afterwards, booted and spurred, he was saying mass in the church of Saint Gudule, on his way to pronounce sentence at Antwerp. That judgment was rendered the same day, and confirmed the preceding act of condemnation. Vargas went to his task as cheerfully as if it had been murder. The act of outlawry and beggary was fulminated against the city and province, and a handsome amount of misery for others, and of plunder for himself, was the result of his promptness. Many thousand citizens were ruined, many millions of property confiscated.

Thus was Utrecht deprived of all its ancient liberties, as a punishment for having dared to maintain them. The clergy, too, of the province, having invoked the bull "in Coena Domini," by which clerical property was declared exempt from taxation, had excited the wrath of the Duke. To wield so slight a bulrush against the man who had just been girded with the consecrated and jewelled sword of the Pope, was indeed but a feeble attempt at defence. Alva treated the Coena Domini with contempt, but he imprisoned the printer who had dared to-republish it at this juncture. Finding, moreover, that it had been put in press by the orders of no less a

person than Secretary La Torre, he threw that officer also into prison, besides suspending him from his functions for a year.

The estates of the province and the magistracy of the city appealed to his Majesty from the decision of the Duke. The case did not directly concern the interests of religion, for although the heretical troubles of 1566 furnished the nominal motives of the condemnation, the resistance to the tenth and twentieth penny was the real crime for which they were suffering. The King, therefore, although far from clement, was not extremely rigorous. He refused the object of the appeal, but he did not put the envoys to death by whom it was brought to Madrid. This would have certainly been the case in matters strictly religious, or even had the commissioners arrived two years before, but even Philip believed, perhaps, that for the moment almost enough innocent blood had been shed. At any rate he suffered the legates from Utrecht to return, not with their petition, granted, but at least with their heads upon their shoulders. Early in the following year, the provinces still remaining under martial law, all the Utrecht charters were taken into the possession of government, and deposited in the castle of Vredenberg. It was not till after the departure of Alva, that they were restored; according to royal command, by the new governor, Requesens.

By the middle of the year 1569, Alva wrote to the King, with great cheerfulness of tone, announcing that the estates of the provinces had all consented to the tax. He congratulated his Majesty upon the fact that this income might thenceforth be enjoyed in perpetuity, and that it would bring at least two millions yearly into his coffers, over and above the expenses of government. The hundredth penny, as he calculated, would amount to at least five millions.

He was, however, very premature in his triumph, for the estates were not long in withdrawing a concession which had either been wrung from them

by violence or filched from them by misrepresentation. Taking the ground that the assent of all had been stipulated before that of any one should be esteemed valid, every province now refused to enforce or to permit the collection of the tenth or the twentieth penny within their limits. Dire were the threatenings and the wrath of the Viceroy, painfully protracted the renewed negotiations with the estates. At last, a compromise was effected, and the final struggle postponed. Late in the summer it was agreed that the provinces should pay two millions yearly for the two following years, the term to expire in the month of August, 1571. Till that period, therefore, there was comparative repose upon the subject.

The question of a general pardon had been agitated for more than a year, both in Brussels and Madrid. Viglius, who knew his countrymen better than the Viceroy knew them, had written frequently to his friend Hopper, on the propriety of at once proclaiming an amnesty. There had also been many conferences between himself and the Duke of Alva, and he had furnished more than one draught for the proposed measure. The President knew full well that the point had been reached beyond which the force of tyranny could go no further. All additional pressure, he felt sure, could only produce reaction, the effect of which might be to drive the Spaniards from the Netherlands. There might then be another game to play. The heads of those who had so assiduously served the government throughout its terrible career might, in their turn, be brought to the block, and their estates be made to enrich the Treasury. Moreover, there were symptoms that Alva's favor was on the wane. The King had not been remarkably struck with the merits of the new financial measures, and had expressed much anxiety lest the trade of the country should suffer. The Duke was known to be desirous of his recal. His health was broken, he felt that he was bitterly detested throughout the country, and he was certain that his enemies at Madrid were fast undermining his credit. He seemed also to have a dim suspicion that his mission was accomplished in the Netherlands; that as much blood had been

shed at present as the land could easily absorb. He wrote urgently and even piteously to Philip, on the subject of his return. "Were your Majesty only pleased to take me from this country," he said, "I should esteem it as great a favor as if your Majesty had given me life." He swore "by the soul of the Duchess," that he "would rather be cut into little pieces" than retire from his post were his presence necessary, but he expressed the opinion that through his exertions affairs had been placed in such train that they were sure to roll on smoothly to the end of time. "At present, and for the future," he wrote, "your Majesty is and will be more strictly obeyed than any of your predecessors;" adding, with insane self-complacency, "and all this has been accomplished without violence." He also assured his Majesty as to the prosperous condition of financial affairs. His tax was to work wonders. He had conversed with capitalists who had offered him four millions yearly for the tenth penny, but he had refused, because he estimated the product at a much higher figure. The hundredth penny could not be rated lower than five millions. It was obvious, therefore, that instead of remitting funds to the provinces, his Majesty would, for the future, derive from them a steady and enormous income. Moreover, he assured the King that there was at present no one to inspire anxiety from within or without. The only great noble of note in the country was the Duke of Aerschot, who was devoted to his Majesty, and who, moreover, "amounted to very little," as the King well knew. As for the Prince of Orange, he would have business enough in keeping out of the clutches of his creditors. They had nothing to fear from Germany. England would do nothing as long as Germany was quiet; and France was sunk too low to be feared at all.

Such being the sentiments of the Duke, the King was already considering the propriety of appointing his successor. All this was known to the President. He felt instinctively that more clemency was to be expected from that successor, whoever he might be; and he was satisfied, therefore, that he would at least not be injuring his own position by inclining at this late hour

to the side of mercy. His opposition to the tenth and twentieth penny had already established a breach between himself and the Viceroy, but he felt secretly comforted by the reflection that the King was probably on the same side with himself. Alva still spoke of him, to be sure, both in public and private, with approbation; taking occasion to commend him frequently, in his private letters, as a servant upright and zealous, as a living register, without whose universal knowledge of things and persons he should hardly know which way to turn. The President, however, was growing weary of his own sycophancy. He begged his friend Joachim to take his part, if his Excellency should write unfavorably about his conduct to the King. He seemed to have changed his views of the man concerning whose "prudence and gentleness" he could once turn so many fine periods. He even expressed some anxiety lest doubts should begin to be entertained as to the perfect clemency of the King's character. "Here is so much confiscation and bloodshed going on," said he, "that some taint of cruelty or avarice may chance to bespatter the robe of his Majesty." He also confessed that he had occasionally read in history of greater benignity than was now exercised against the poor Netherlanders. Had the learned Frisian arrived at these humane conclusions at a somewhat earlier day, it might perhaps have been better for himself and for his fatherland. Had he served his country as faithfully as he had served Time, and Philip, and Alva, his lands would not have been so broad, nor his dignities so numerous, but he would not have been obliged, in his old age; to exclaim, with whimsical petulance, that "the faithful servant is always a perpetual ass."

It was now certain that an act of amnesty was in contemplation by the King. Viglius had furnished several plans, which, however, had been so much disfigured by the numerous exceptions suggested by Alva, that the President could scarce recognize his work. Granvelle, too, had frequently urged the pardon on the attention of Philip. The Cardinal was too astute not to perceive that the time had arrived when a continued severity could only

defeat its own work. He felt that the country could not be rendered more abject, the spirit of patriotism more apparently extinct. A show of clemency, which would now cost nothing, and would mean nothing, might be more effective than this profuse and wanton bloodshed.

He saw plainly that the brutality of Alva had already overshot the mark. Too politic, however, openly to reprove so powerful a functionary, he continued to speak of him and of his administration to Philip in terms of exalted eulogy. He was a "sage seignior," a prudent governor, one on whom his Majesty could entirely repose. He was a man of long experience, trained all his life to affairs, and perfectly capable of giving a good account of everything to which he turned his hands. He admitted, however, to other correspondents, that the administration of the sage seignior, on whom his Majesty could so implicitly rely, had at last "brought that provinces into a deplorable condition."

Four different forms of pardon had been sent from Madrid, toward the close of 1569. From these four the Duke was to select one, and carefully to destroy the other three. It was not, however, till July of the following year that the choice was made, and the Viceroy in readiness to announce the pardon. On the 14th of that month a great festival was held at Antwerp, for the purpose of solemnly proclaiming the long expected amnesty. In the morning, the Duke, accompanied by a brilliant staff, and by a long procession of clergy in their gorgeous robes, paraded through the streets of the commercial capital, to offer up prayers and hear mass in the cathedral. The Bishop of Arras then began a sermon upon the blessings of mercy, with a running commentary upon the royal clemency about to be exhibited. In the very outset, however, of his discourse, he was seized with convulsions, which required his removal from the pulpit; an incident which was not considered of felicitous augury. In the afternoon, the Duke with his suite appeared upon the square in front of the Town House. Here a large

scaffolding or theatre had been erected. The platform and the steps which led to it were covered with scarlet cloth. A throne, covered with cloth of gold, was arranged in the most elevated position for the Duke. On the steps immediately below him were placed two of the most beautiful women in Antwerp, clad in allegorical garments to represent righteousness and peace. The staircase and platform were lined with officers, the square was beset with troops, and filled to its utmost verge with an expectant crowd of citizens. Toward the close of a summer's afternoon, the Duke wearing the famous hat and sword of the Pope, took his seat on the throne with all the airs of royalty. After a few preliminary ceremonies, a civil functionary, standing between two heralds; then recited the long-expected act of grace. His reading, however, was so indistinct, that few save the soldiers in the immediate vicinity of the platform could hear a word of the document.

This effect was, perhaps, intentional. Certainly but little enthusiasm could be expected from the crowd, had the text of the amnesty been heard. It consisted of three parts—a recitation of the wrongs committed, a statement of the terms of pardon, and a long list of exceptions. All the sins of omission and commission, the heresy, the public preaching, the image-breaking, the Compromise, the confederacy, the rebellion, were painted in lively colors. Pardon, however, was offered to all those who had not rendered themselves liable to positive impeachment, in case they should make their peace with the Church before the expiration of two months, and by confession and repentance obtain their absolution. The exceptions, however, occupied the greater part of the document. When the general act of condemnation had been fulminated by which all Netherlanders were sentenced to death, the exceptions had been very few, and all the individuals mentioned by name. In the act of pardon, the exceptions comprehended so many classes of inhabitants, that it was impossible for any individual to escape a place in, some one of the categories, whenever it should please the government to take his life. Expressly excluded from the

benefit of the act were all ministers, teachers, dogmatizers, and all who had favored and harbored such dogmatizers and preachers; all those in the least degree implicated in the image-breaking; all who had ever been individually suspected of heresy or schism; all who had ever signed or favored the Compromise or the Petition to the Regent; all those who had taken up arms, contributed money, distributed tracts; all those in any manner chargeable with misprision, or who had failed to denounce those guilty of heresy. All persons, however, who were included in any of these classes of exceptions might report themselves within six months, when, upon confession of their crime, they might hope for a favorable consideration of their case.

Such, in brief, and stripped of its verbiage, was this amnesty for which the Netherlands had so long been hoping. By its provisions, not a man or woman was pardoned who had ever committed a fault. The innocent alone were forgiven. Even they were not sure of mercy, unless they should obtain full absolution from the Pope. More certainly than ever would the accustomed rigor be dealt to all who had committed any of those positive acts for which so many had already lost their heads. The clause by which a possibility of pardon was hinted to such criminals, provided they would confess and surrender, was justly regarded as a trap. No one was deceived by it. No man, after the experience of the last three years; would voluntarily thrust his head into the lion's mouth, in order to fix it more firmly upon his shoulders. No man who had effected his escape was likely to play informer against himself, in hope of obtaining a pardon from which all but the most sincere and zealous Catholics were in reality excepted.

The murmur and discontent were universal, therefore, as soon as the terms of the act became known. Alva wrote to the King, to be sure, "that the people were entirely satisfied, save only the demagogues, who could tolerate no single exception from the amnesty; but he could neither deceive

his sovereign nor himself by such statements." Certainly, Philip was totally disappointed in the effect which he had anticipated from the measure. He had thought "it would stop the mouths of many people." On the contrary, every mouth in the Netherlands became vociferous to denounce the hypocrisy by which a new act of condemnation had been promulgated under the name of a pardon. Viglius, who had drawn up an instrument of much ampler clemency, was far from satisfied with the measure which had been adopted. "Certainly," he wrote to his confidant, "a more benignant measure was to be expected from so merciful a Prince. After four years have past, to reserve for punishment and for execution all those who during the tumult did not, through weakness of mind, render as much service to government as brave men might have offered, is altogether unexampled."

Alva could not long affect to believe in the people's satisfaction. He soon wrote to the King, acknowledging that the impression produced by the pardon was far from favorable. He attributed much evil effect to the severe censure which was openly pronounced upon the act by members of the government, both in Spain and the Netherlands. He complained that Hopper had written to Viglius, that "the most severe of the four forms of pardon transmitted had been selected;" the fact being, that the most lenient one had been adopted. If this were so, whose imagination is powerful enough to portray the three which had been burned, and which, although more severe than the fierce document promulgated, were still entitled acts of pardon? The Duke spoke bitterly of the manner in which influential persons in Madrid had openly abominated the cruel form of amnesty which had been decreed. His authority in the Netherlands was already sufficiently weakened, he said, and such censure upon his actions from head-quarters did not tend to improve it. "In truth," he added, almost pathetically, "it is not wonderful that the whole nation should be ill-disposed towards me, for I certainly have done nothing to make them love me. At the same time, such language transmitted from Madrid does not increase their tenderness."

In short, viewed as a measure by which government, without disarming itself of its terrible powers, was to pacify the popular mind, the amnesty was a failure. Viewed as a net, by which fresh victims should be enticed to entangle themselves, who had already made their way into the distant atmosphere of liberty, it was equally unsuccessful. A few very obscure individuals made their appearance to claim the benefit of the act, before the six months had expired. With these it was thought expedient to deal gently; but no one was deceived by such clemency. As the common people expressed themselves, the net was not spread on that occasion for finches.

The wits of the Netherlands, seeking relief from their wretched condition in a still more wretched quibble, transposed two letters of the word Pardona, and re-baptized the new measure Pandora. The conceit was not without meaning. The amnesty, descending from supernal regions, had been ushered into the presence of mortals as a messenger laden with heavenly gifts. The casket, when opened, had diffused curses instead of blessings. There, however, the classical analogy ended, for it would have puzzled all the pedants of Louvain to discover Hope lurking, under any disguise, within the clauses of the pardon.

Very soon after the promulgation of this celebrated act, the new bride of Philip, Anne of Austria, passed through the Netherlands, on her way to Madrid. During her brief stay in Brussels, she granted an interview to the Dowager Countess of Horn. That unhappy lady, having seen her eldest son, the head of her illustrious house, so recently perish on the scaffold, wished to make a last effort in behalf of the remaining one, then closely confined in the prison of Segovia. The Archduchess solemnly promised that his release should be the first boon which she would request of her royal bridegroom, and the bereaved countess retired almost with a hope.

A short digression must here be allowed, to narrate the remaining fortunes of that son, the ill-starred Seigneur de Montigny. His mission to Madrid in company of the Marquis Berghen has been related in a previous volume. The last and most melancholy scene in the life of his fellow envoy has been described in a recent chapter. After that ominous event, Montigny became most anxious to effect his retreat from Spain. He had been separated more than a year from his few months' bride. He was not imprisoned, but he felt himself under the most rigid although secret inspection. It was utterly impossible for him to obtain leave to return, or to take his departure without permission. On one occasion, having left the city accidentally for a ride on horseback to an adjoining village, he found himself surrounded by an unexpected escort of forty troopers. Still, however, the King retained a smiling mien. To Montigny's repeated and urgent requests for dismissal, Philip graciously urged his desire for a continuance of his visit. He was requested to remain in order to accompany his sovereign upon that journey to the Netherlands which would not be much longer delayed. In his impatience anything seemed preferable to the state of suspense in which he was made to linger. He eagerly offered, if he were accused or suspected of crime, to surrender himself to imprisonment if he only could be brought to trial. Soon after Alva's arrival in the Netherlands, the first part of this offer was accepted. No sooner were the arrests of Egmont and Horn known in Madrid, than Montigny was deprived of his liberty, and closely confined in the alcazar of Segovia. Here he remained imprisoned for eight or nine months in a high tower, with no attendant save a young page, Arthur de Munter, who had accompanied him from the Netherlands. Eight men-at-arms were expressly employed to watch over him and to prevent his escape.

One day towards the middle of July, 1568, a band of pilgrims, some of them in Flemish attire, went through the streets of Segovia. They were chanting, as was customary on such occasions, a low, monotonous song, in

which Montigny, who happened to be listening, suddenly recognized the language of his fatherland. His surprise was still greater when, upon paying closer attention, he distinguished the terrible meaning of the song. The pretended pilgrims, having no other means of communication with the prisoner, were singing for his information the tragic fates of his brother, Count Horn, and of his friend, Count Egmont. Mingled with the strain were warnings of his own approaching doom; if he were not able to effect his escape before it should be too late. Thus by this friendly masquerade did Montigny learn the fate of his brother, which otherwise, in that land of terrible secrecy, might have been concealed from him for ever.

The hint as to his own preservation was not lost upon him; and he at once set about a plan of escape. He succeeded in gaining over to his interests one of the eight soldiers by whom he was guarded, and he was thus enabled to communicate with many of his own adherents without the prison walls. His major-domo had previously been permitted to furnish his master's table with provisions dressed by his own cook. A correspondence was now carried on by means of letters concealed within the loaves of bread sent daily to the prisoner. In the same way files were provided for sawing through his window-bars. A very delicate ladder of ropes, by which he was to effect his escape into the court below, was also transmitted. The plan had been completely arranged. A certain Pole employed in the enterprise was to be at Hernani, with horses in readiness to convey them to San Sebastian. There a sloop had been engaged, and was waiting their arrival. Montigny, accordingly, in a letter enclosed within a loaf of bread—the last, as he hoped, which he should break in prison—was instructed, after cutting off his beard and otherwise disguising his person, to execute his plan and join his confederates at Hernani. Unfortunately, the major-domo of Montigny was in love. Upon the eve of departure from Spain, his farewell interview with his mistress was so much protracted that the care of sending the bread was left to another. The substitute managed so unskilfully that the loaf was

brought to the commandant of the castle, and not to the prisoner. The commandant broke the bread, discovered the letter, and became master of the whole plot. All persons engaged in the enterprise were immediately condemned to death, and the Spanish soldier executed without delay. The others being considered, on account of their loyalty to their master as deserving a commutation of punishment, were sent to the galleys. The major-domo, whose ill-timed gallantry had thus cost Montigny his liberty, received two hundred lashes in addition. All, however, were eventually released from imprisonment.

The unfortunate gentleman was now kept in still closer confinement in his lonely tower. As all his adherents had been disposed of, he could no longer entertain a hope of escape. In the autumn of this year (1568) it was thought expedient by Alva to bring his case formally before the Blood Council. Montigny had committed no crime, but he was one of that band of popular nobles whose deaths had been long decreed. Letters were accordingly sent to Spain, empowering certain functionaries there to institute that preliminary examination, which, as usual, was to be the only trial vouchsafed. A long list of interrogatories was addressed to him on February 7th, 1569, in his prison at Segovia. A week afterwards, he was again visited by the alcalde, who read over to him the answers which he had made on the first occasion, and required him to confirm them. He was then directed to send his procuration to certain persons in the Netherlands, whom he might wish to appear in his behalf. Montigny complied by sending several names, with a clause of substitution. All the persons thus appointed, however, declined to act, unless they could be furnished with a copy of the procuration, and with a statement of the articles of accusation. This was positively refused by the Blood Council. Seeing no possibility of rendering service to their friend by performing any part in this mockery of justice, they refused to accept the procuration. They could not defend a case when not only the testimony, but even the charges against the accused were kept

secret. An individual was accordingly appointed by government to appear in the prisoner's behalf.

Thus the forms of justice were observed, and Montigny, a close prisoner in the tower of Segovia, was put upon trial for his life in Brussels. Certainly nothing could exceed the irony of such a process. The advocate had never seen his client, thousands of miles away, and was allowed to hold no communication with him by letter. The proceedings were instituted by a summons, addressed by the Duke of Alva to Madame de Montigny in Brussels. That unhappy lady could only appeal to the King. "Convinced," she said, "that her husband was innocent of the charges brought against him, she threw herself, overwhelmed and consumed by tears and misery, at his Majesty's feet. She begged the King to remember the past services of Montigny, her own youth, and that she had enjoyed his company but four months. By all these considerations, and by the passion of Jesus Christ, she adjured the monarch to pardon any faults which her husband might have committed." The reader can easily judge how much effect such a tender appeal was like to have upon the heart of Philip. From that rock; thus feebly smitten, there flowed no fountain of mercy. It was not more certain that Montigny's answers to the interrogatories addressed to him had created a triumphant vindication of his course, than that such vindication would be utterly powerless to save his life. The charges preferred against him were similar to those which had brought Egmont and Horn to the block, and it certainly created no ground of hope for him, that he could prove himself even more innocent of suspicious conduct than they had done. On the 4th March, 1570, accordingly, the Duke of Alva pronounced sentence against him. The sentence declared that his head should be cut off, and afterwards exposed to public view upon the head of a pike. Upon the 18th March, 1570, the Duke addressed a requisitory letter to the alcaldes, corregidores, and other judges of Castile, empowering them to carry the sentence into execution.

On the arrival of this requisition there was a serious debate before the King in council. It seemed to be the general opinion that there had been almost severity enough in the Netherlands for the present. The spectacle of the public execution of another distinguished personage, it was thought, might now prove more irritating than salutary. The King was of this opinion himself. It certainly did not occur to him or to his advisers that this consideration should lead them to spare the life of an innocent man. The doubts entertained as to the expediency of a fresh murder were not allowed to benefit the prisoner, who, besides being a loyal subject and a communicant of the ancient Church, was also clothed in the white robes of an envoy, claiming not only justice but hospitality, as the deputy of Philip's sister, Margaret of Parma. These considerations probably never occurred to the mind of His Majesty. In view, however, of the peculiar circumstances of the case, it was unanimously agreed that there should be no more blood publicly shed. Most of the councillors were in favor of slow poison. Montigny's meat and drink, they said, should be daily drugged, so that he might die by little and little. Philip, however, terminated these disquisitions by deciding that the ends of justice would not thus be sufficiently answered. The prisoner, he had resolved, should be regularly executed, but the deed should be secret, and it should be publicly announced that he had died of a fever.

This point having been settled; the King now set about the arrangement of his plan with all that close attention to detail which marked his character. The patient industry which, had God given him a human heart and a love of right, might have made him a useful monarch, he now devoted to a scheme of midnight murder with a tranquil sense of enjoyment which seems almost incredible. There is no exaggeration in calling the deed a murder, for it certainly was not sanctioned by any law, divine or human, nor justified or excused by any of the circumstances which are supposed to palliate homicide. Nor, when the elaborate and superfluous luxury of arrangements

made by Philip for the accomplishment of his design is considered, can it be doubted that he found a positive pleasure in his task. It would almost seem that he had become jealous of Alva's achievements in the work of slaughter. He appeared willing to prove to those immediately about him, that however capable might be the Viceroy of conducting public executions on a grand and terrifying scale, there was yet a certain delicacy of finish never attained by Alva in such business, and which was all his Majesty's own. The King was resolved to make the assassination of Montigny a masterpiece.

On the 17th August, 1570, he accordingly directed Don Eugenio de Peralta, concierge of the fortress of Simancas, to repair to Segovia, and thence to remove the Seigneur Montigny to Simancas. Here he was to be strictly immured; yet was to be allowed at times to walk in the corridor adjoining his chamber. On the 7th October following, the licentiate Don Alonzo de Avellano, alcalde of Valladolid, was furnished with an order addressed by the King to Don Eugenio de Peralta, requiring him to place the prisoner in the hands of the said licentiate, who was charged with the execution of Alva's sentence. This functionary had, moreover, been provided with a minute letter of instructions, which had been drawn up according to the King's directions, on the 1st October. In these royal instructions, it was stated that, although the sentence was for a public execution, yet the King had decided in favor of a private one within the walls of the fortress. It was to be managed so that no one should suspect that Montigny had been executed, but so that, on the contrary, it should be universally said and believed that he had died a natural death. Very few persons, all sworn and threatened into secrecy, were therefore to be employed. Don Alonzo was to start immediately for Valladolid; which was within two short leagues of Simancas. At that place he would communicate with Don Eugenio, and arrange the mode, day, and hour of execution. He would leave Valladolid on the evening before a holiday, late in the afternoon, so as to arrive a little after dark at Simancas. He would take with

him a confidential notary, an executioner, and as few servants as possible. Immediately upon his entrance to the fortress, he was to communicate the sentence of death to Montigny, in presence of Don Eugenio and of one or two other persons. He would then console him, in which task he would be assisted by Don Eugenio. He would afterwards leave him with the religious person who would be appointed for that purpose. That night and the whole of the following day, which would be a festival, till after midnight, would be allotted to Montigny, that he might have time to confess, to receive the sacraments, to convert himself to God, and to repent. Between one and two o'clock in the morning the execution was to take place, in presence of the ecclesiastic, of Don Eugenio de Peralta, of the notary, and of one or two other persons, who would be needed by the executioner. The ecclesiastic was to be a wise and prudent person, and to be informed how little confidence Montigny inspired in the article of faith. If the prisoner should wish to make a will, it could not be permitted. As all his property had been confiscated, he could dispose of nothing. Should he, however, desire to make a memorial of the debts which he would wish paid; he was to be allowed that liberty. It was, however, to be stipulated that he was to make no allusion, in any memorial or letter which he might write, to the execution which was about to take place. He was to use the language of a man seriously ill, and who feels himself at the point of death. By this infernal ingenuity it was proposed to make the victim an accomplice in the plot, and to place a false exculpation of his assassins in his dying lips. The execution having been fulfilled, and the death having been announced with the dissimulation prescribed, the burial was to take place in the church of Saint Saviour, in Simancas. A moderate degree of pomp, such as befitted a person of Montigny's quality, was to be allowed, and a decent tomb erected. A grand mass was also to be celebrated, with a respectable number, "say seven hundred," of lesser masses. As the servants of the defunct were few in number, continued the frugal King, they might be provided each with a suit

of mourning. Having thus personally arranged all the details of this secret work, from the reading of the sentence to the burial of the prisoner; having settled not only the mode of his departure from life, but of his passage through purgatory, the King despatched the agent on his mission.

The royal program was faithfully enacted. Don Alonzo arrived at Valladolid; and made his arrangements with Don Eugenio. It was agreed that a paper, prepared by royal authority, and brought by Don Alonzo from Madrid, should be thrown into the corridor of Montigny's prison. This paper, written in Latin, ran as follows:

"In the night, as I understand, there will be no chance for your escape. In the daytime there will be many; for you are then in charge of a single gouty guardian, no match in strength or speed for so vigorous a man as you. Make your escape from the 8th to the 12th of October, at any hour you can, and take the road contiguous to the castle gate through which you entered. You will find Robert and John, who will be ready with horses, and with everything necessary. May God favor your undertaking.—R. D. M."

The letter, thus designedly thrown into the corridor by one confederate, was soon afterwards picked up by the other, who immediately taxed Montigny with an attempt to escape. Notwithstanding the vehement protestations of innocence naturally made by the prisoner, his pretended project was made the pretext for a still closer imprisonment in the "Bishop's Tower." A letter, written at Madrid, by Philip's orders, had been brought by Don Alonzo to Simancas, narrating by anticipation these circumstances, precisely as they had now occurred. It moreover stated that Montigny, in consequence of his close confinement, had fallen grievously ill, and that he would receive all the attention compatible with his safe keeping. This letter,

according to previous orders, was now signed by Don Eugenio de Peralta, dated 10th October, 1570; and publicly despatched to Philip. It was thus formally established that Montigny was seriously ill. A physician, thoroughly instructed and sworn to secrecy, was now ostentatiously admitted to the tower, bringing with him a vast quantity of drugs. He duly circulated among the townspeople, on his return, his opinion that the illustrious prisoner was afflicted with a disorder from which it was almost impossible that he should recover. Thus, thanks to Philip's masterly precautions, not a person in Madrid or Simancas was ignorant that Montigny was dying of a fever, with the single exception of the patient himself.

On Saturday, the 14th of October, at nightfall, Don Alonzo de Avellano, accompanied by the prescribed individuals, including Fray Hernando del Castillo, an ecclesiastic of high reputation, made their appearance at the prison of Simancas. At ten in the evening the announcement of the sentence was made to Montigny. He was visibly agitated at the sudden intelligence, for it was entirely unexpected by him. He had, on the contrary, hoped much from the intercession of, the Queen, whose arrival he had already learned. He soon recovered himself, however, and requested to be left alone with the ecclesiastic. All the night and the following day were passed in holy offices. He conducted himself with great moderation, courage, and tranquillity. He protested his entire innocence of any complicity with the Prince of Orange, or of any disloyal designs or sentiments at any period of his life. He drew up a memorial, expressing his strong attachment to every point of the Catholic faith, from which he had never for an instant swerved. His whole demeanor was noble, submissive, and Christian. "In every essential," said Fray Hernando, "he conducted himself so well that we who remain may bear him envy." He wrote a paper of instructions concerning his faithful and bereaved dependents. He placed his signet ring, attached to a small gold chain, in the hands of the ecclesiastic, to be by him transmitted to his wife.

Another ring, set with turquois, he sent to his mother-in-law, the Princess Espinoy, from whom he had received it. About an hour after midnight, on the morning, therefore, of the 16th of October, Fray Hernando gave notice that the prisoner was ready to die. The alcalde Don Alonzo then entered, accompanied by the executioner and the notary. The sentence of Alva was now again recited, the alcalde adding that the King, "out of his clemency and benignity," had substituted a secret for a public execution. Montigny admitted that the judgment would be just and the punishment lenient, if it were conceded that the charges against him were true. His enemies, however, while he had been thus immured, had possessed the power to accuse him as they listed. He ceased to speak, and the executioner then came forward and strangled him. The alcalde, the notary, and the executioner then immediately started for Valladolid, so that no person next morning knew that they had been that night at Simancas, nor could guess the dark deed which they had then and there accomplished. The terrible, secret they were forbidden, on pain of death, to reveal.

Montigny, immediately after his death, was clothed in the habit of Saint Francis, in order to conceal the marks of strangulation. In the course of the day the body was deposited, according to the King's previous orders, in the church of Saint Saviour. Don Eugenio de Peralta, who superintended the interment, uncovered the face of the defunct to prove his identity, which was instantly recognised by many sorrowing servants. The next morning the second letter, prepared by Philip long before, and brought by Don Alonzo de Avellano to Simancas, received the date of 17th October, 1570, together with the signature of Don Eugenio de Peralta, keeper of Simancas fortress, and was then publicly despatched to the King. It stated that, notwithstanding the care given to the Seigneur de Montigny in his severe illness by the physicians who had attended him, he had continued to grow worse and worse until the previous morning between three and four o'clock, when he had expired. The Fray Hernando del Castillo, who had accidentally

happened to be at Simancas, had performed the holy offices, at the request of the deceased, who had died in so catholic a frame of mind, that great hopes might be entertained of his salvation. Although he possessed no property, yet his burial had been conducted very respectably.

On the 3rd of November, 1570, these two letters, ostensibly written by Don Eugenio de Peralta, were transmitted by Philip to the Duke of Alva. They were to serve as evidence of the statement which the Governor-General was now instructed to make, that the Seigneur de Montigny had died a natural death in the fortress of Simancas. By the same courier, the King likewise forwarded a secret memoir, containing the exact history of the dark transaction, from which memoir the foregoing account has been prepared. At the same time the Duke was instructed publicly to exhibit the lying letters of Don Eugenio de Peralta, as containing an authentic statement of the affair. The King observed, moreover, in his letter, that there was not a person in Spain who doubted that Montigny had died of a fever. He added that if the sentiments of the deceased nobleman had been at all in conformity with his external manifestations, according to the accounts received of his last moments, it was to be hoped that God would have mercy upon his soul. The secretary who copied the letter, took the liberty of adding, however, to this paragraph the suggestion, that "if Montigny were really a heretic, the devil, who always assists his children in such moments, would hardly have failed him in his dying hour." Philip, displeased with this flippancy, caused the passage to be erased. He even gave vent to his royal indignation in a marginal note, to the effect that we should always express favorable judgments concerning the dead—a pious sentiment always dearer to writing masters than to historians. It seemed never to have occurred however to this remarkable moralist, that it was quite as reprehensible to strangle an innocent man as to speak ill of him after his decease.

Thus perished Baron Montigny, four years after his arrival in Madrid as Duchess Margaret's ambassador, and three years after the death of his fellow-envoy Marquis Berghen. No apology is necessary for so detailed an account of this dark and secret tragedy. The great transactions of a reign are sometimes paltry things; great battles and great treaties, after vast consumption of life and of breath, often leave the world where they found it. The events which occupy many of the statelier pages of history, and which have most lived in the mouths of men, frequently contain but commonplace lessons of philosophy. It is perhaps otherwise when, by the resuscitation of secret documents, over which the dust of three centuries has gathered, we are enabled to study the internal working of a system of perfect tyranny. Liberal institutions, republican or constitutional governments, move in the daylight; we see their mode of operation, feel the jar of their wheels, and are often needlessly alarmed at their apparent tendencies. The reverse of the picture is not always so easily attainable. When, therefore, we find a careful portrait of a consummate tyrant, painted by his own hand, it is worth our while to pause for a moment, that we may carefully peruse the lineaments. Certainly, we shall afterwards not love liberty the less.

Towards the end of the year 1570, still another and a terrible misfortune descended upon the Netherlands. It was now the hand of God which smote the unhappy country, already so tortured by the cruelty of war. An inundation, more tremendous than any which had yet been recorded in those annals so prolific in such catastrophes, now swept the whole coast from Flanders to Friesland. Not the memorable deluge of the thirteenth century, out of which the Zuyder Zee was born; not that in which the waters of the Dollart had closed for ever over the villages and churches of Groningen; not one of those perpetually recurring floods by which the inhabitants of the Netherlands, year after year, were recalled to an anxious remembrance of the watery chaos out of which their fatherland had been

created, and into which it was in daily danger of resolving itself again, had excited so much terror and caused so much destruction. A continued and violent gale from the north-west had long been sweeping the Atlantic waters into the North Sea, and had now piled them upon the fragile coasts of the provinces. The dykes, tasked beyond their strength, burst in every direction. The cities of Flanders, to a considerable distance inland, were suddenly invaded by the waters of the ocean. The whole narrow peninsula of North Holland was in imminent danger of being swept away for ever. Between Amsterdam and Meyden, the great Diemer dyke was broken through in twelve places. The Hand-bos, a bulwark formed of oaken piles, fastened with metal clamps, moored with iron anchors, and secured by gravel and granite, was snapped to pieces like packthread. The "Sleeper," a dyke thus called, because it was usually left in repose by the elements, except in great emergencies, alone held firm, and prevented the consummation of the catastrophe. Still the ocean poured in upon the land with terrible fury. Dort, Rotterdam, and many other cities were, for a time, almost submerged. Along the coast, fishing vessels, and even ships of larger size, were floated up into the country, where they entangled themselves in groves and orchards, or beat to pieces the roofs and walls of houses. The destruction of life and of property was enormous throughout the maritime provinces, but in Friesland the desolation was complete. There nearly all the dykes and sluices were dashed to fragments; the country, far and- wide, converted into an angry sea. The steeples and towers of inland cities became islands of the ocean. Thousands of human beings were swept out of existence in a few hours. Whole districts of territory, with all their villages, farms, and churches, were rent from their places, borne along by the force of the waves, sometimes to be lodged in another part of the country, sometimes to be entirely engulfed. Multitudes of men, women, children, of horses, oxen, sheep, and every domestic animal, were struggling in the waves in every direction. Every boat, and every article which could serve as a boat, were

eagerly seized upon. Every house was inundated; even the grave-yards gave up their dead. The living infant in his cradle, and the long-buried corpse in his coffin, floated side by side. The ancient flood seemed about to be renewed. Everywhere, upon the top of trees, upon the steeples of churches, human beings were clustered, praying to God for mercy, and to their fellow-men for assistance. As the storm at last was subsiding, boats began to ply in every direction, saving those who were still struggling in the water, picking fugitives from roofs and tree-tops, and collecting the bodies of those already drowned. Colonel Robles, Seigneur de Billy, formerly much hated for his Spanish or Portuguese blood, made himself very active in this humane work. By his exertions, and those of the troops belonging to Groningen, many lives were rescued, and gratitude replaced the ancient animosity. It was estimated that at least twenty thousand persons were destroyed in the province of Friesland alone. Throughout the Netherlands, one hundred thousand persons perished. The damage alone to property, the number of animals engulfed in the sea, were almost incalculable.

These events took place on the 1st and 2nd November, 1570. The former happened to be the day of All Saints, and the Spaniards maintained loudly that the vengeance of Heaven had descended upon the abode of heretics. The Netherlands looked upon the catastrophe as ominous of still more terrible misfortunes in store for them. They seemed doomed to destruction by God and man. An overwhelming tyranny had long been chafing against their constitutional bulwarks, only to sweep over them at last; and now the resistless ocean, impatient of man's feeble barriers, had at last risen to reclaim his prey. Nature, as if disposed to put to the blush the feeble cruelty of man, had thus wrought more havoc in a few hours, than bigotry, however active, could effect in many years.

Nearly at the close of this year (1570) an incident occurred, illustrating the ferocious courage so often engendered in civil contests. On the western

verge of the Isle of Bommel, stood the castle of Lowestein. The island is not in the sea. It is the narrow but important territory which is enclosed between the Meuse and the Waal. The castle, placed in a slender hook, at the junction of the two rivers, commanded the two cities of Gorcum and Dorcum, and the whole navigation of the waters. One evening, towards the end of December, four monks, wearing the cowls and robes of Mendicant Grey Friars, demanded hospitality at the castle gate. They were at once ushered into the presence of the commandant, a brother of President Tisnacq. He was standing by the fire, conversing with his wife. The foremost monk approaching him, asked whether the castle held for the Duke of Alva or the Prince of Orange. The castellan replied that he recognized no prince save Philip, King of Spain. Thereupon the monk, who was no other than Herman de Ruyter, a drover by trade, and a warm partisan of Orange, plucked a pistol from beneath his robe, and shot the commandant through the head. The others, taking advantage of the sudden panic, overcame all the resistance offered by the feeble garrison, and made themselves masters of the place. In the course of the next day they introduced into the castle four or five and twenty men, with which force they diligently set themselves to fortify the place, and secure themselves in its possession. A larger reinforcement which they had reckoned upon, was detained by the floods and frosts, which, for the moment, had made the roads and rivers alike impracticable.

Don Roderigo de Toledo, governor of Bois le Duc, immediately despatched a certain Captain Perea, at the head of two hundred soldiers, who were joined on the way by a miscellaneous force of volunteers, to recover the fortress as soon as possible. The castle, bathed on its outward walls by the Waal and Meuse, and having two redoubts, defended by a double interior foss, would have been difficult to take by assaults had the number of the besieged been at all adequate to its defence. As matters stood, however, the Spaniards, by battering a breach in the wall with their cannon

on the first day, and then escalading the inner works with remarkable gallantry upon the second, found themselves masters of the place within eight and forty hours of their first appearance before its gates. Most of the defenders were either slain or captured alive. De Ruyter alone had betaken himself to an inner hall of the castle, where he stood at bay upon the threshold. Many Spaniards, one after another, as they attempted to kill or to secure him, fell before his sword, which he wielded with the strength of a giant. At last, overpowered by numbers, and weakened by the loss of blood, he retreated slowly into the hall, followed by many of his antagonists. Here, by an unexpected movement, he applied a match to a train of powder, which he had previously laid along the floor of the apartment. The explosion was instantaneous. The tower, where the contest was taking place, sprang into the air, and De Ruyter with his enemies shared a common doom. A part of the mangled remains of this heroic but ferocious patriot were afterwards dug from the ruins of the tower, and with impotent malice nailed upon the gallows at Bois le Duc. Of his surviving companions, some were beheaded, some were broken on the wheel, some were hung and quartered—all were executed.

ETEXT EDITOR'S BOOKMARKS:

Constitutional governments, move in the daylight

Consumer would pay the tax, supposing it were ever paid at all

Financial opposition to tyranny is apt to be unanimous

Great battles often leave the world where they found it

Great transactions of a reign are sometimes paltry things

The faithful servant is always a perpetual ass

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